

cutoff is March 11, 2026.

Even assuming arguendo that the Court had for good cause ordered the motion heard less than 30 days before the date of trial, and the Plaintiffs were able to secure their originally requested hearing date of March 16, 2026 Plaintiffs were also required under subsection (a)(2) to serve notice of the motion at least 81 days before the hearing date. Even if Plaintiffs had personally served their motion the same day they filed it (December 31, 2025), there are only 75 days between March 16, 2025 and December 31, 2025. Since 2024 the summary judgment statute has required service 81 days before the time appointed for hearing. Therefore, the motion was untimely per statute at the outset.

“Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition.” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In “light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*Id.* at 118.)

Any argument that Defendant waived the required notice by filing a substantive response to the MSJ are without merit. While cases have found such a waiver in the context of other motions, courts have generally found that in the context of an MSJ, waiver of the minimum notice “should only be based on the affirmative assent of the affected parties.” (*Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 768.) “In sum, the statutory language and existing case law lead [] to the conclusion a trial court does not have authority to shorten the minimum notice period for summary judgment hearings absent the express consent of the parties.” (*Ibid.*)

Here, Defendants objection to Plaintiffs’ untimeliness suggests lack of consent on their part. The Plaintiffs’ motion for summary judgment is denied.

20. 9:00 AM CASE NUMBER: MSC21-01391
CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP
HEARING ON SUMMARY MOTION CONTD FROM 3/4/26 TO BE HEARD W/PLTFS MOTION FOR SJ
ON 3/18/26
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant RM Safe 15 Corp. (“RM 15”) and Defendant San Ramon Hannibal, LLC (“Hannibal”) (collectively, “Defendants”) Motion for Summary Judgment or in the alternative, Summary Adjudication. The Motion relates to Plaintiff JFP-AG/San Ramon, LLC, Plaintiff JFP-AG/Batesville, LLC, Plaintiff JFP-AG/Little Rock, LLC, Plaintiff JFP-AG/Springerville, LLC, Plaintiff JFP-AG/Tuscon, LLC, Plaintiff JFP-AG/Roswell, LLC, Plaintiff JFP-AG/Ruidoso, LLC, Plaintiff JFP-AG/Longview, LLC, and Plaintiff JFP-AG/Carthage, LLC (collectively, “Plaintiffs”)’s Verified Amended Complaint (“VAC”) for declaratory relief and contract reformation.

As a threshold issue, the Court notes that Defendants’ separate statement fails to comply with California Rules of Court, Rule 3.1350.

On a motion for summary adjudication, the separate statement must tie each “undisputed material fact” to the particular claim, defense or issue sought to be adjudicated. (Cal. Rules of Ct, Rule

3.1350(b).) Specifically, California Rules of Court, Rule 3.1350(b) states:

“If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.”

Here, although the Defendants have noticed each of Plaintiffs’ three separate causes of action, the separate statement does not tie each “undisputed material fact” to the specific cause of action to be adjudicated. Instead, Defendants provide a list of “undisputed material facts” that purport to apply to all causes of action on which they seek summary adjudication.

When multiple causes of action, issues or defenses are presented for summary adjudication in one motion, each cause of action, issue or defense to which the motion is directed must have a separate section heading indicating the issue number and specifying the issue. (Cal. Rules of Ct., Rule 3.1350(d).)

Specifically, California Rules of Court, Rule 3.1350(d) states: “(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify: [¶] (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and [¶] (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.”

This procedural deficiency makes it difficult for the court to efficiently resolve the motion, as “[t]he parties’ separate statements ‘are intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.’” (*St. Paul Mercury Ins. Co. v. Frontier Pac. Ins. Co.* (2003) 111 Cal.App.4th 1234, 1248.)

It is within the trial court’s discretion to deny a summary judgment motion when the moving party fails to comply with the separate statement requirement. (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1189; Code Civ. Proc. § 437c, subdivision (b)(1) [“The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.”])

Rather than denying the motion at the outset, the Court analysis the motion as a motion for summary judgment. Because the Court concludes, as described further below, that there is a genuine dispute of material fact with respect to Plaintiffs’ first cause of action, it need not reach Defendants arguments with respect to Plaintiffs’ second or third causes of action as Defendants are not entitled to the entry of judgment as a matter of law.

Defendants’ motion for summary judgment is **denied**.

Request for Judicial Notice

Both Defendants' and Plaintiffs' unopposed requests for judicial notice are **granted**, subject to limitations. (Evid. Code §§ 452, 453; *Linda Vista Village San Diego Homeowner's Association, Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 ["Judicial notice may be taken of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face."]; see also *People v. Franklin* (2016) 63 Cal.4th 261, 280 ["A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments."] [quoting *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914].)

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Brief Factual Background

This suit concerns nine commercial leases entered into between defendant RM 15 Safe Corp, the original lessor, and the predecessors in interest of the nine plaintiff LLCs, the original lessees.

The operative pleading is plaintiffs' Second Amended Complaint, filed on December 15, 2022. The plaintiffs are all Delaware LLCs. They are wholly owned by non-party JFP AG Holdings, LLC. The

Defendants are RM 15, the original lessor, and Defendant San Ramon Hannibal LLC.

Plaintiffs allege the following chronology of events:

January 2011. The leases were entered into between RM 15 and non-party lessees referred to as the Acadia entities.

November 2011. Plaintiffs acquired the subject leases from the Acadia entities, and assumed the obligations under the leases. RM 15 was aware of this transfer and assumption.

January 2014. In discussions of an unrelated lease, the principals learned that there was some degree of confusion and ambiguity concerning the right to serially exercise plaintiffs' option to extend the leases every five years. Accordingly, the parties agreed that they would sign amendments clarifying that each plaintiff could exercise all of its extension options at once, which would extend the lease term out to 2083.

The amendments were signed in or around this time.

On unspecified dates, RM 15 transferred the subject properties to its nine affiliated LLCs.

February, 2021. Plaintiffs' principal discovered that the amendments, which concerned the exercise of the extension option, created an ambiguity as to the exercise of the purchase option.

During discussions between plaintiffs' principal and defendants' principal, defendants expressed the position that the practical effect of the amendments was to negate plaintiffs' purchase option rights — until 2083.

Based on these allegations, Plaintiffs allege a cause of action for declaratory relief as well as two separate causes of action for reformation. Plaintiffs seek non-monetary relief and attorney fees; they do not seek damages.

In the First Cause of Action, Plaintiffs seek a declaratory judgment in two respects: (1) that they have the right to exercise their purchase options at any time during the lease, not just at the end of the lease, and; (2) and that purchase price does not include the fair market value of the buildings on the leased premises. In the alternative, with regard to the timing issue, the Second and Third Causes of Action seek reformation of the lease amendments; plaintiffs seek to add language clarifying that plaintiffs do not have to wait until the end of the extended lease term (2083) to exercise their purchase option.

Analysis

Defendants move for summary judgment on Plaintiffs' first cause of action for declaratory relief on several grounds. The gravamen of their argument is that section 31.02 of the parties' ground leases is unambiguous with respect to the calculation of "Fair Market Value" when read in conjunction with section 9.01(b) and that the purchase price is clear on the price to be paid under the purchase option.

Section 31.02 of the Ground Lease reads in full:

Landlord hereby grants to Tenant the option to purchase (the "Purchase Option") the

Premises, as of the end of the Original Term of this Lease, or if and to the extent Tenant exercises its options to extend the term of this Lease, as of the end of any current Extended Term (the "Purchase Option Date") for a price equal to the Fair Market Value of the Premises as unencumbered by this Lease or any Occupancy Lease as herein after determined, plus in either case all closing costs including without limitation any applicable prepayment penalty. Such option shall be exercised by written notice from Tenant to Landlord, given not less than one (1) year prior to the expiration of the Original Term of this Lease or such Extended Term, as the case may be, and in each case accompanied by a statement of the Fair Market Value. If Landlord and Tenant failed to agree on the within fifteen (15) days following Tenant's notice of exercise of the Purchase Option, such Fair Market Value shall be determined by appraisal in accordance with Article IX of this Lease.

Section 9.01 of the Ground Lease reads in full:

(b) When used in Section 31.02, the term "Fair Market Value" means the price that a willing purchaser not compelled to buy would pay, or the price that a willing seller not under any compulsion to sell would be willing to accept, determined as if the Premises is free and clear of all liens, encumbrances, options to purchase, restrictions, reservations and agreements, including, without limitation, this Lease, the Original Occupancy Lease and any Occupancy Lease.

Specifically, Defendants argue that "[t]he language of Section 31.02 is not ambiguous and can be understood in its ordinary and popular sense. Section 9.01 confirms the intent of Section 31.02 that the 'price' includes both 'Land' and [']Building' without regard to the AmCap Ground Lease and without regard to any of the 'Tenant's' other right, titles, interests, purchase options, reservations or agreements." (Motion at 19:5-7.)

Defendants rely on *Pacific Intermountain Express Co. v. Alexander* (1962) 205 Cal.App.2d 640 for their argument that Section 31.02 is not ambiguous and can be understood "in its ordinary and popular sense." (Mot. at 19:4-5.) In *Pacific Intermountain Express*, the lease obligated the tenant to pay a basic monthly rental and an "additional rental" based on the amount of city and county taxes "which shall be levied upon the land and building appertaining thereto, in which said demised premises are located." The lessee claimed ambiguity but the court held that the wording of the lease encompassed the increased taxes imposed on all of the premises of which the demised premises formed only a part.

In opposition, Plaintiffs present evidence that the Ground Leases are ambiguous with respect to the definition of "premises." They point to internal conflict within the Ground Leases with respect to the term "Premises." For example, that while "Premises" is defined in Section 1.01(i) as including both the land and the buildings constructed on the land, Section 8.01 sets forth certain definitions "relating to a taking of or damage to all or part of the Premises or improvements or any interest in them by eminent domain or condemnation." Plaintiffs argue that if "Premises" is understood to include the land and the Building, then the phrase "Premises or improvements" is redundant of the phrase "all or any part of the Premises," and the addition of "or improvements" would therefore be nonsensical. (Opp. at 9:26-10:3.) The Court agrees that the Ground Leases are ambiguous in this

respect.

The Court also finds that *Pacific Intermountain Express* is distinguishable in several respects. *Pacific Intermountain* concerned the interpretation of a tax payment lease provision, specifically: after providing for a basic monthly rental of \$7,704.40, the lease stated that appellant shall pay an “additional rental” based upon the amount of city and county taxes “which shall be levied upon the land and building appertaining thereto, in which said demised premises are located, as they will be for the fiscal year 1958-1959.” (*Id.* at 644.) The tenant argued that the phrase “as they will be” refers to “land and building” rather than to “taxes.” The Court disagreed, finding the argument wholly without merit. (*Id.* at 645 [“it is difficult to conceive of a more strained construction of language which is clear upon its face. The phrase ‘which shall be levied upon the land and building’ is a subordinate clause modifying the word ‘taxes.’ While ‘taxes . . . as they will be’ in a given fiscal year has a readily understandable meaning, ‘land and building . . . as they will be’ during a similar period of time is at best a nebulous concept.”].)

Unlike the lease at issue in *Pacific Intermountain Express*, the Ground Leases here have internally inconsistent uses of a key term, as discussed above. And because that contrary language makes the intention of the parties unclear, the Court may consider extrinsic evidence as to intent. (*Oceanside 84, Ltd. v. Fidelity Federal Bank* (1997) 56 Cal.App.4th 1441, 1448.)

Here, contrary evidence of intent exists with respect to the purchase option which requires denial of the Motion for Summary Judgment. Plaintiffs have introduced evidence that the purchase price does not include the fair market value of the buildings on the leased premises. (See, e.g., Johnson Depo. at 78:13-23 [“I’m talking about the deed to the improvements now, right. There’s more than one deed. There’s the deed to the land and a deed to the improvements and the deed of those improvements then from Acadia to me. And it says forever, as I recall. That’s what I recall in reading the documents. So I took this to mean that, you know, I had full ownership and freedom to do with these improvements what I wanted to do – demolish them or not, mortgage them or not, transfer them or not. But I didn’t think I had to pay for them twice.”]). In contrast, RM15’s person most knowledgeable testified that “the purchase option would never be exercised” and that “it’s just there to pass whatever tax standards or I.R.S. standards or investment standards that were needed to have a purchase option, but the purchase option really wouldn’t be exercised because ... it would be a prohibitive formula.” (Kadish Depo. at 76:4-5; 73:13-18.)

Ultimately, as the Court is “required to view the evidence and the reasonable inferences therefrom in the light most favorable to the party opposing the summary judgment motion” and as “doubts as to whether there are any triable issues must be resolved in favor of the opposing party,” the Motion for Summary Judgment is **denied**. (*Essex Ins. Co. v. Heck* (2010) 186 Cal.App.4th 1513, 1522).

Evidentiary Objections

With respect to Defendants’ objections to Plaintiffs’ evidence raised by Defendants in their “Evidentiary Objections to Plaintiffs’ Separate Statement of Disputed Material Facts, Additional Material Facts and Evidence in Support Thereof,” the Court finds Defendants’ objections do not comply with the requirements set forth in California Rules of Court, rule 3.1354. Objections to evidence in connection with a motion for summary judgment must “be served and filed separately

from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement. Each written objection must be numbered consecutively and must: [i] identify the name of the document in which the specific material objected to is located [and] [q] quote or set forth the objectionable statement or material..." (Cal. Rules of Court, rule 3.1354(b).)

Here, Defendants put forth the entire disputed material fact as well as the evidence Plaintiffs have adduced in support. Their objections appear to be both to the facts and the evidence themselves. The grounds for objection do not distinguish between the additional material fact or the multiple types of evidence offered in support, leaving it for the Court to determine which ground applies to what evidence or testimony.

The objections are therefore procedurally defective.

21. 9:00 AM CASE NUMBER: MSC21-02115
CASE NAME: K.C. VS DOE 1 COUNTY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: CALIFORNIA DEPARTMENT OF SOCIAL SERVICES
TENTATIVE RULING:

Before the Court is Defendant State of California's, by and through California Department of Social Services, Motion for Judgment on the Pleadings of the Second Amended Complaint ("MJOP").

Defendant requests judicial notice of the FAC and the Court's order sustaining its demurrer to the FAC. Plaintiff requests judicial notice of the SAC as well as the Court's order sustaining its demurrer to the FAC. Both requests for judicial notice are **granted**. (Evid. Code § 452(d).)

Defendant's MJOP is **granted without leave to amend** as outlined below.

Procedural Background

Plaintiff filed her initial Complaint on October 12, 2021. The Complaint included two causes of action: (1) negligence against "Does 1 County", and (2) negligence against Does 2-25. On November 23, 2021, Plaintiff filed her First Amended Complaint, naming Contra Costa County as Doe 1. The FAC again alleged the same two causes of action. The County filed an Answer on January 3, 2022.

On January 9, 2025, Plaintiff filed an "Amendment to Complaint Naming Does 2 through 4." Those Does were identified as: Doe 2: California Department of Social Services ("CDSS"); Does 3: Health Care Delivery Services, Inc.; and (3) Lions Gate Juvenile Court School. The docket does not show any proof of service indicating that any of the newly named Does were ever served with the FAC. However, on April 18, 2025, the State of California by and through the California Department of Social Services filed a demurrer to the FAC. The demurrer included a declaration indicating that counsel for the State met and conferred with Plaintiff's counsel by telephone and they could not reach an agreement on the demurrer.

On August 13, 2025, Plaintiff attempted to file a "Third Amended Complaint." The filing was rejected by the Court and Plaintiff was informed that she needed leave of Court to file a Third Amended Complaint. Thereafter, on August 18, 2025, Plaintiff filed an Opposition "and agreement to file